SUR LA RECEVABILITÉ

Application No. 17393/90
by E.S.L. and others
against Switzerland

The European Commission of Human Rights (First Chamber) sitting in private on 2 March 1994, the following members being present:

MM. A. WEITZEL, President
S. TRECHSEL
F. ERMACORA
E. BUSUTTIL
A.S. GÖZÜBÜYÜK
Mrs. J. LIDDY
MM. M.P. PELLONPÄÄ
B. MARXER
G.B. REFFI
B. CONFORTI
N. BRATZA
I. BÉKÉS
E. KONSTANTINOV

Mrs. M.F. BUQUICCHIO, Secretary to the Chamber

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 28 June 1990 by E.S.L. against Switzerland and registered on 5 November 1990 under file No. 17393/90;

Having regard to the report provided for in Rule 47 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The facts of the case as submitted by the applicants may be summarised as follows:

The first and second applicants are churches registered at Lausanne in Switzerland and at Los Angeles in the United States, respectively. The third applicant, N. I. is a non-profit organisation based in Los Angeles. They are represented by Mr. Douwe Korff, a lawyer practising in Cambridge in the United Kingdom.

In 1987 criminal investigations were instituted in Switzerland and Italy against the first applicant on account of tax evasion. In the course thereof the first applicant learned that the security police (police de sûreté) of the Canton of Vaud possessed information on its activities in a report drawn up in 1986 by Interpol Madrid and that it had passed this information on to the Italian tax authorities.

On 28 April 1989 the first applicant filed a criminal complaint with the investigating judge of the Canton of Vaud (le Juge d'instruction du canton de Vaud) against the Vaud police, alleging that they had breached confidentiality by passing on the report to a third party. On 2 October 1989 the cantonal investigating judge dismissed this complaint on the ground that the officer concerned had neither been aware of disclosing secret information of which he had had knowledge on account of his duties, nor had he intended to do so ("ni

conscience, ni volonté").

On 6 June 1989 the first applicant requested the judge of the Canton of Vaud charged with the rectification of police files (le juge cantonal chargé de la rectification des dossiers de la police judiciaire) to rectify the Interpol report, which he alleged was incorrect and damaging, and to grant the applicants access to it. The other two applicants joined themselves into this request.

On 21 July 1989 the judge informed the applicants that the report concerned was not to be found in the files of the security police and that no file existed in the name of any of the applicants. The judge also pointed out that information concerning the first applicant was contained in a further file of criminal investigation concerning a third party, though not relating to the applicants' request; this file could not be made accessible as the proceedings were still pending. On 8 September 1989, upon the applicants' renewed request, the cantonal judge reiterated his conclusions in a further decision.

The applicants then filed a public law appeal (recours de droit public) with the Federal Court (Tribunal fédéral), complaining that the authorities had interfered with their right to respect for private life under Article 8 of the Convention by collecting and storing data and passing on the report in question to a third party. The applicants also sought access to this report.

On 29 November 1989 the security police wrote to the cantonal judge of the Canton of Vaud stating that "no copy whatsoever of the Report of Interpol Madrid is in the possession of the Vaud judiciary police" ("qu'aucun exemplaire quelconque du rapport d'Interpol Madrid du 20 novembre 1986 n'est en possession de la police judiciare vaudoise"). This letter was communicated to the applicants in the proceedings before the Federal Court.

On 22 December 1989 the Federal Court dismissed the public law appeal on the ground that the report was not in the possession of the security police, and that the applicants had not shown that the statements to this effect were incorrect.

COMPLAINTS

The applicants complain that, contrary to Articles 8, 9, 10 and 11 of the Convention, data concerning them were collected, stored and passed on to a third party, and that there were only inadequate safeguards against abuse.

Under Article 13 of the Convention the applicants complain that they had no effective remedy available to them under Swiss law. Thus, the cantonal judge could not inspect or rectify the files, and the Federal Court failed to enter into the substantive issues raised.

Under Article 14 of the Convention the applicants complain of discrimination on account of their religion and their opinions.

THE LAW

1. Under Articles 8, 9, 10 and 11 (Art. 8, 9, 10, 11) of the Convention the applicants complain that data concerning them was collected, stored and passed on to a third party, and that there were only inadequate safeguards against abuse.

According to the Convention organs' case-law, the storing and the release of information relating to an individual's private life, coupled with a refusal to allow any corrections, may raise an issue under Article 8 (Art. 8) of the Convention (see Eur. Court H.R., Leander judgment of 26 March 1987, Series A No. 116, p. 22, para. 48).

The question arises whether the present complaint, which relates to the disclosure of confidential data concerning the applicant churches' activities, falls within the concept of "private life" within the meaning of this provision.

The Commission does not need to resolve this question since, in any event, even assuming that the answer to this question is in the affirmative, this complaint is manifestly ill-founded for the following reason:

The Commission notes that according to the decision of the Federal Court of 22 December 1989 the report complained of was not in the possession of the police. The applicants have not demonstrated that the decision of the Federal Court was incorrect in that at that time the authorities in fact possessed the report. The applicants have also not provided any indication that, after the Federal Court gave its judgment, the report again came into possession of the authorities.

In these circumstances the Commission considers that the applicants failed to substantiate their allegation that the Swiss authorities continue to maintain a file of information about them. These complaints do not therefore disclose any appearance of a violation of the rights set out in Article 8 (Art. 8) of the Convention, and this part of the application is manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

2. Insofar as the applicants complain under Article 13 (Art. 13) of the Convention that they had no effective remedy at their disposal, the Commission notes that, even assuming that the applicants have an arguable claim in this respect, they in fact filed a public law appeal with the Federal Court. Other than complaining of the outcome of the proceedings before the Federal Court, the applicants have not shown in what respect their public law appeal was not an effective remedy within the meaning of Article 13 (Art. 13) of the Convention. Thus this part of the application is manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

3. Insofar as the applicants complain under Article 14 (Art. 14) of the Convention of discrimination against them, the Commission finds no separate issue. The remainder of the application is therefore also manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

For these reasons, the Commission, by a majority,

DECLARES THE APPLICATION INADMISSIBLE.

Secretary to the First Chamber — President of the First Chamber

(M.F. BUQUICCHIO) — (A. WEITZEL)